

Amendment No. 1 to SB2404

White
Signature of Sponsor

AMEND Senate Bill No. 2404*

House Bill No. 2426

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) There is created an early educator workforce development resource task force to assess the existing state workforce, education, and training resources available to support early educators or aspiring early educators and to identify gaps and opportunities to strengthen workforce pathways for early educators, in a manner consistent with the state's workforce development priorities.

(b) The early educator workforce development resource task force is composed of:

(1) The commissioner of labor and workforce development who serves as chair of the task force;

(2) The commissioner of education, or the commissioner's designee;

(3) The commissioner of human services, or the commissioner's designee;

(4) The commissioner of economic and community development, or the commissioner's designee;

(5) The chancellor of the board of regents, or the chancellor's designee;

(6) The executive director of the Tennessee higher education commission, or the executive director's designee;

(7) The executive director of the state workforce development board, or the executive director's designee, who serves as a nonvoting, advisory member;

(8) One (1) member from the private sector who is an early childhood advocate, who is appointed by the speaker of the house of representatives and who serves as co-chair of the task force;

(9) One (1) member who is an early childhood education leader from a community college, who is appointed by the speaker of the senate;

(10) One (1) member who is an early childhood education leader from a high school career and technical education program in early childhood, who is appointed by the speaker of the house of representatives; and

(11) One (1) member who is an early childhood educator from a private child care program, who is appointed by the speaker of the senate.

(c) Members of the task force:

(1) Serve without compensation; and

(2) Are not entitled to receive reimbursement for travel expenses.

(d) The task force is administratively attached to the department of labor and workforce development and the commissioner of labor and workforce development shall call the first meeting of the task force to order. The task force may utilize the assistance of nonprofit or community-based organizations with relevant expertise to support the task force with stakeholder engagement, data collection, and preparing the report required in subsection (g).

(e) The task force shall meet by electronic means in accordance with Tennessee Code Annotated, § 8-44-108. The task force shall convene at least three (3) virtual meetings and shall solicit stakeholder input. The task force shall notify appropriate stakeholders of the opportunity to participate in virtual meetings.

(f) The task force shall:

(1) Identify and categorize existing state-administered or state-supported resources available to support the education, training, credential attainment, and career pathways for becoming an early educator, including, but not limited to:

- (A) The Tennessee Promise scholarship;
- (B) The Tennessee reconnect grant;
- (C) Career and technical education programs and dual enrollment opportunities for aspiring early educators;
- (D) Registered apprenticeship programs for aspiring early educators;
- (E) Federal funding available through the federal Workforce Innovation and Opportunity Act (29 U.S.C. § 3101 et seq.); and
- (F) The federal Workforce Pell Grant program;

(2) Examine how the resources identified pursuant to subdivision (f)(1) may be better aligned, coordinated, or leveraged to support entry, advancement, credential attainment, and degree completion in the early educator pipeline;

(3) Assess gaps in training, credentialing, and education resources for early educators, including gaps resulting from the discontinuation of prior workforce supported programs;

(4) Identify potential strategies to address any gaps identified pursuant to subdivision (f)(3), including administrative, statutory, or funding-related strategies; and

(5) Develop recommendations to improve access to, and the effectiveness of, workforce pathways for early educators.

(g) The task force co-chair shall:

- (1) Plan the agenda for all meetings;
- (2) Appoint subcommittees, as deemed necessary;
- (3) Coordinate with the department of labor and workforce development for logistics of all meetings and posting of the required public notice;
- (4) Prepare a report of the task force's findings and recommendations and submit the report, no later than December 31, 2026, to the governor, the

education committee and the commerce and labor committee of the senate, and the committees of the house of representatives having jurisdiction over early childhood education and labor and workforce development. The task force ceases to exist upon the submission of the report required in this subsection (g).

(h) As used in this section, "early educator" means an individual who is working in:

(1) A child care or preschool setting serving children from birth until kindergarten enrollment; or

(2) A licensed or license-exempt afterschool child care program serving children from birth up to twelve (12) years of age.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 5, Part 56, is amended by adding the following as a new section:

(a) The state board of education shall promulgate rules to create a pathway to allow privately operated child care programs, as defined in § 49-1-1102, and child care agencies, as defined in § 71-3-501, that serve children from birth until kindergarten enrollment to be eligible to be approved as a clinical practice site for an educator preparation program that offers a pathway for students to receive an early childhood education birth to kindergarten endorsement on their initial license, if:

(1) The educator preparation program operates a registered apprenticeship program approved by the department of education; and

(2) The clinical practice site meets the criteria required in subsection (b).

(b) To be eligible to be an approved clinical practice site pursuant to this section, a privately operated child care program or child care agency must:

(1)

(A) Be a child care agency licensed by the department of human services pursuant to title 71, chapter 3, part 5, that serves children from birth until kindergarten enrollment; or

(B) Be a child care program, as defined in § 49-1-1102, that is certified, approved, or otherwise authorized by the department of education that serves children from birth until kindergarten enrollment; and

(2) Meet the requirements for clinical experiences and standards established by the policies of the state board of education.

(c) The rules required in this section must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3.

(a) Section 1 of this act takes effect upon becoming a law, the public welfare requiring it.

(b) For purposes of promulgating rules, Section 2 of this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, Section 2 of this act takes effect July 1, 2026, the public welfare requiring it.